

1 STATE OF OKLAHOMA

2 1st Session of the 60th Legislature (2025)

3 HOUSE BILL 2898

By: Townley

7 AS INTRODUCED

8 An Act relating to the Oklahoma Corporation
9 Commission; prohibiting the construction of certain
10 facilities within certain distance of primary
residences; providing setback distance details; and
providing an effective date.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 86.5a of Title 17, unless there
18 is created a duplication in numbering, reads as follows:

19 No person or entity shall construct, establish, or operate a
20 commercial pit, commercial soil farming operation, or commercial
21 recycling facility within five hundred (500) feet of a primary
22 residence. The setback distance shall be measured in a straight
23 line from the nearest point of the proposed or existing commercial
24 operation to the nearest point of the primary residence.

SECTION 2. This act shall become effective November 1, 2025.

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